

25STCV05670 25STCV05670

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-31

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Case Number: 25STCV05670 Hearing Date: July 31, 2026 Dept: 512

HEARING DATE: Fri., July 31, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Lopez, et al. v. Portillo, et al. COMPL.

FILED: 02-28-25

CASE NUMBER: 25STCV05670

FAC FILED: 07-02-25

NOTICE: OK

PROCEEDINGS: PLAINTIFFS' MOTIONS TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, AND SPECIAL INTERROGATORIES, AND DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY:

Plaintiffs Soledad Lopez and Vanessa

Flores

RESP. PARTY: None

MOTIONS TO

COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, AND SPECIAL INTERROGATORIES; MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED; REQUEST FOR SANCTIONS

(CCP §§ 2030.290; 2031.300; 2033.280)

TENTATIVE RULING:

Plaintiffs Soledad Lopez
and Vanessa Flores' Motion to Compel Responses to Form Interrogatories,
Motion to Compel Responses to Special Interrogatories, Motion to Deem the Truth
of Matters Specified in Requests for Admission, and Motion to Compel Responses
to Requests for Production of Documents to Defendant Oscar Rolando Portillo are
TAKEN OFF CALENDAR.

The Court schedules a
Status Conference Re: Bankruptcy of O. Portillo for August 28, 2026 at 8:30
a.m. Counsel for O. Portillo is ordered to file a Status Report at least 5 days
before the hearing date.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 30, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 30, 2026 ☐ Late ☒
None

ANALYSIS:

I.
Background

On February 28, 2025, Plaintiffs Maria Soledad Lopez and Vanessa Flores ("Plaintiffs") initiated the instant action against Defendants Lesvia Patricia Portillo, Oscar Rolando Portillo, Glenis Cardona, Debbie Leary, and Cardona Investments and Does 1-20, alleging seven causes of action.

On July 2, 2025, Plaintiffs filed a First Amended Complaint ("FAC") against Lesvia Patricia Portillo, Oscar Rolando Portillo, Glenis Cardona, Cardona Investments, Lauren Lockwood, and Golden Escrow ("Defendants") and Does 1-10, alleging causes of action for Breach of Contract, Fraud, Constructive Fraud, Negligence, Breach of Fiduciary Duty, Unfair Business Practice, and Conspiracy.

On September 17, 2025, a Notice of Stay of Proceedings as to O. Portillo was filed.

On December 1, 2025, L. Portillo, O. Portillo, Cardona, and Lockwood filed an Answer to the FAC.

On May 11, 2026, and May 13, 2026, Plaintiffs filed the instant Motion to Compel Responses to Form Interrogatories ("FROGs"), Motion to Compel Responses to Special Interrogatories ("SROGs"), Motion to Deem the Truth of Matters Specified in Requests for Admission ("RFAs"), and Motion to Compel Responses to Requests for Production of Documents ("RPDs") to Defendant Oscar Rolando Portillo (collectively, "the Motions") and accompanying requests for sanctions.

On June 12, 2026, and June 30, 2026, the Court reset the hearings on the Motions for July 31, 2026. Plaintiffs filed and served notices of ruling.

No Oppositions to the Motions have been filed.

II.

Procedural
Issues

As an initial matter, it appears that O. Portillo is still in bankruptcy (see 9/17/25 Notice; 3/16/26 Order), and thus proceedings as to O. Portillo are stayed.

To the extent
the status of O. Portillo's bankruptcy or the bankruptcy stay has changed,
Plaintiffs failed to address this issue in the Motions.

Accordingly, the
Motions are TAKEN OFF CALENDAR.

III.
Conclusion & Order

For the foregoing reasons,
Plaintiffs Soledad Lopez and Vanessa Flores' Motion to Compel Responses
to Form Interrogatories, Motion to Compel Responses to Special Interrogatories,
Motion to Deem the Truth of Matters Specified in Requests for Admission, and
Motion to Compel Responses to Requests for Production of Documents to Defendant
Oscar Rolando Portillo are TAKEN OFF CALENDAR.

The Court schedules a
Status Conference Re: Bankruptcy of O. Portillo for August 28, 2026 at 8:30
a.m. Counsel for O. Portillo is ordered to file a Status Report at least 5 days
before the hearing date.

Moving parties are ordered
to give notice.